

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

DECISION

Application no. 29441/06
Isgandar HAMIDOV
against Azerbaijan

The European Court of Human Rights (First Section), sitting on 13 March 2012 as a Committee composed of:

Peer Lorenzen, *President,*
Elisabeth Steiner,
Khanlar Hajiyev, *judges,*

and André Wampach, *Deputy Section Registrar*,

Having regard to the above application lodged on 17 March 2006,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Isgandar Majid oglu Hamidov, is an Azerbaijani national who was born in 1948 and lives in Baku. He is represented before the Court by Mr Y. Huseyn, a lawyer practising in Azerbaijan. The Azerbaijani Government ("the Government") were represented by their Agent, Mr Ç. Asgarov.

The applicant complained under Articles 6 and 11 of the Convention about the authorities' allegedly arbitrary refusal to register a political party founded by him and the allegedly unfair judicial proceedings against the relevant authorities. It appears that the political party in question was eventually registered in December 2008. However, the applicant had not informed the Court about this fact prior to the communication of the case.

The applicant's complaints were communicated to the Government, who submitted their observations on the admissibility and merits. The

observations were forwarded to the applicant, who was invited to submit his own observations. No reply was received to the Registry's letter.

By a letter dated 28 June 2011, sent by registered post, the applicant's representative was notified that the period allowed for submission of his observations had expired on 28 April 2011 and that no extension of time had been requested. The applicant's representative's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. The applicant's representative received this letter on 7 July 2011. However, no response has been received.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue his application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

André Wampach
Deputy Registrar

Peer Lorenzen
President